

North Carolina DUI Laws

NORTH CAROLINA DUI LAWS

N.C.G.S. § 20-138.1 - Impaired Driving

- Blood alcohol concentration (BAC) 0.08% or higher
- Commercial drivers: 0.04% BAC limit
- Under 21: 0.00% BAC limit
- Impairment by drugs or alcohol
- Implied consent to chemical testing

Penalties by Offense Level

- Level V (least serious): 24 hours to 60 days jail
- Level IV: 48 hours to 120 days jail
- Level III: 72 hours to 6 months jail
- Level II: 7 days to 1 year jail
- Level I (most serious): 30 days to 2 years jail

License Consequences

- Immediate 30-day license revocation
- 1-year revocation for conviction
- Limited driving privilege available
- Ignition interlock device required
- Substance abuse assessment mandatory

Aggravating Factors

- BAC 0.15% or higher
- Speeding 30+ mph over limit
- Reckless or dangerous driving
- Causing serious injury
- Child passenger under 18